

21STCV01676 21STCV01676

County: los-angeles

Division: Civil Law and Motion

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Case Number: 21STCV01676 Hearing Date: September 22, 2026 Dept: 107

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY OF

LOS ANGELES

David

Pacheco Mata, et al.,

Plaintiffs,

v.

Eurostar,

et al.,

Defendants.

Case No.: 21STC01676

[TENTATIVE] Motion to Tax

Costs

I.

Relevant Procedural

history

Judgment was entered on August 3, 2026. A memorandum

of costs was filed on August 14, 2026. A motion to tax costs was filed August 28, 2026. The motion is unopposed. On September 11, 2026, Cross-Complainants Tanzey Properties, LLC, filed a notice of non-opposition.

II.

Summary

a.

Moving

Arguments Defendants move to tax the following on Defendant/Cross-Complainant Tanzey Properties, LLC's Memorandum of Costs:

Item No. 1:

Filing Fees of \$1,195.00 of the \$1,215.00 requested;

Item No. 4: Deposition costs of \$115,286.88 of the \$118,471.26 requested;

Item No. 5: Service of Process costs of \$6,942.20 in their entirety;

Item No. 9: Court Reporter Fees of \$1,745.00 in their entirety; and

Item No. 14: E-filing fees of \$940.25 in their entirety.

Regarding

the filing fees, Defendant asserts that Defendant Eurostar already paid all of Tanzey's defense fees and costs up to the date of Tanzey and Eurostar's settlement with Plaintiffs on December 12, 2025 and no evidence of new filing fees has been presented.

Defendant

moves to tax the requested deposition costs of \$118,471.21; however, Tanzey provided no Memorandum of Costs (Worksheet) setting forth the costs incurred. The vast majority of the depositions were taken while Eurostar was paying for Tanzey's defense.

In

regards to the Service of Process costs of \$6,942.20, Court Reporter Fees of \$1,745.00, and E-filing fees of \$940.25, Defendant moves to tax each of these as unsubstantiated.

b. Opposing Arguments

On September 11, 2026, Defendants/Cross-Complainants Tanzey Properties, LLC, filed a notice of non-opposition to the motion.

c. Reply Arguments None filed.

III.

Legal

Standard

“Except

as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1032, subdivision (a)(4) defines “prevailing party” as, “the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.”

Costs recoverable under section 1032 must be: (1)

“reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation”; and (2) “reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c)(2), (3).)

““If

the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.) “[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity

of which appears doubtful, or which does not appear to be proper on its face. [Citation] However, 'if the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the objecting party.' [Citations]" (Id., brackets removed.) "The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation] If so, the burden is on the objecting party to show them to be unnecessary or unreasonable. [Citation]" (Id.)

Discussion

Here, Defendant Eurostar, Inc moves to tax costs of Cross-Complainants Tanzey Properties, LLC, as unsubstantiated. On September 11, 2026, Cross-Complainants Tanzey Properties, LLC, filed a notice of non-opposition. The motion to tax costs is granted.

IV.

Conclusion

Accordingly, Defendants Eurostar, Inc's motion to tax costs is GRANTED.

Moving party is ordered to give notice.

IT IS SO
ORDERED.

Dated: September 21, 2026

Eric
P. Harmon

Judge,
Los Angeles Superior Court